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WHAT PORNOGRAPHY CAN TEACH RELIGION

A review of Frances Ferguson's *Pornography, the Theory: What Utilitarianism Did to Action*.
The University of Chicago Press, 2004. 181 pp. \$18 paper. ISBN 0-226-24321-4.

MOST THEORIES OF PORNOGRAPHY ARE PLAGUED by a noble stupidity that can't see what it most wants.¹ The harder theorists of pornography think, the more they miss the point—the point almost always being that pornography only exists in the absence of thought. As the source of an anti-Cartesian pleasure interrupted by neither *studium* nor *punctum*, nothing—not “education,” not “discovery” (28)—ought to “prick” or “bruise” (26) the smooth progress of sexual delight.² Theories of pornography, nevertheless, regardless of whether they derive from postmodernism, feminism, or religion, insist upon treating pornography metaphysically, aiming to identify “what pornography is” (35) in order to decide whether they are “for” or “against” that thing.³ Yet surely metaphysics is what a form dedicated to perspicuous visibility is supposed to elude. It is therefore no small irony that what may well be the first scholarly account of pornography loyal to the spirit of pornography comes in the deceptively sexless packaging of a book about utilitarianism, a philosophical position best, if somewhat mistakenly, known for deriving the moral calculus that traded the pleasure of the individual for the greatest good of the greatest number.

Frances Ferguson's latest book, *Pornography, the Theory: What Utilitarianism Did to Action*, abandons metaphysics and instead treats pornography as “the most immediate literary form” (152). What is successfully perverse about the book is its consideration of pornography as a kind of valuably extant New Criticism,

¹ See Avital Ronell, *Stupidity* (Urbana: Illinois UP, 2002), for an account of the relationship between philosophy and stupidity.

² Roland Barthes, *Camera Lucida* (NY: Farrar, Straus, and Giroux, 1981).

³ Though some of the loudest indictments of pornography come from the religious right, Ferguson primarily addresses anti-pornography arguments by feminists, like Catherine MacKinnon's in *Harm's Way: The Pornography of Civil Rights Hearings* (Cambridge: Harvard UP, 1997), *Only Words* (Cambridge: Harvard UP, 1993), “Francis Biddle's Sister: Pornography Civil Rights, and Speech” in *Feminism Unmodified: Discourses on Law and Life* (Cambridge: Harvard UP, 1987), and “Pornography as Defamation and Discrimination” in *Boston Law Review* 71 (1991).

“part of a constellation of efforts to talk about actions that do not rest on propositions that can be stated or content that can be paraphrased” (11).⁴ Even when the pornographic texts are as “filled with thinking” (11) as those Ferguson chooses to examine—the Marquis de Sade’s *Philosophie dans le boudoir*, Flaubert’s *Madame Bovary*, D.H. Lawrence’s *Lady Chatterly’s Lover*, and Bret Easton Ellis’s *American Psycho*—the “notable fact” about pornography is its effort not to represent values or beliefs but to describe actions irresolvable into principles. Like Justice Potter Stewart, who famously remarked that “he doesn’t know what pornography is but knows it when he sees it,” Ferguson cares less about what pornography is than what it does. Her goal is to explain how it is possible to “evaluate instances of pornography...even when one cannot produce a particularly good definition of it” (7, emphasis in original). In the tradition of such responses to the co-opting of literary criticism by metaphysics as *Against Interpretation* and *Against Theory*, Ferguson returns to the era of Romanticism, Paul de Man’s primal scene in the narrative of oscillation in literature between the mystifying blindness imposed by ideology and art’s flashes of rhetorical insight.⁵ Ferguson excavates from the notion that art’s blindness requires the elucidation of interpretation a literary form devoted to sight. Pornography differs from de Man’s description of literature insofar as it is preoccupied less with glimpsing ideology than with intense focus on a microcosm of particular events, contexts, and configurations.⁶ Pornography is Ferguson’s answer to what she deems the ultimately anti-democratic practice in criticism of “making claims on behalf of what isn’t there” (127), part of the history of empiricism’s response to metaphysics by determining the value of persons only within localized and endlessly shifting contexts.

Characteristics of the pornographic form, like visual explicitness, relentless physicality, and the idealization of what Ferguson calls not so much sex as the “sexiness of sex,” are treated as individualism’s response to the eclipsing of private selves with public and social identities orchestrated by such instruments as law and custom. Ferguson demonstrates that an insistence on visual explicitness, for example, privileges the immediacy of discrete settings over the establishment of continuous values. Each new context stages the opportunity for a different representational hierarchy akin to that imposed by games, which rate

⁴ The New Critic Cleanth Brooks established the heresy of paraphrase in *The Well Wrought Urn* (1947).

⁵ Paul de Man, *Blindness and Insight: Essays in the Rhetoric of Contemporary Criticism*. (Minnesota UP, 1983).

⁶ See especially the first two essays, “Against Interpretation” and “On Style,” in Susan Sontag’s *Against Interpretation and Other Essays* (Farrar, Straus, and Giroux, 1966). Walter Benn Michaels and Steven Knapp’s “Against Theory” was first printed in *Critical Inquiry* 8.4 (1982), and reprinted with responses in *Against Theory: Literary Studies and the New Pragmatism*, edited by W. J. T. Mitchell (U of Chicago P, 1985).

and objectify people according to particular situations whose conclusions do not carry over to new situations. Games provide a superior method for evaluating discrete acts to those imposed by the logic of intention or motivation and appeals to moral or other kinds of values. Unlike any of those monolithic dictates of response, a highly explicit context can change repeatedly and indefinitely. Sade's *Justine*, for example, is pornographic insofar as it "reconfigures even the notion of personal intentions and individual character by making the material persistence of the body of the messenger...override any message that she might want to deliver" (74). In the caricature of Justine's "mental chastity" (63)—Justine insists she is a virgin on the grounds that she never intended to have sex even after she has been ravaged by a band of robbers—Sade demonstrates the absurdity of intentionalism as the metaphysics of refusing to acknowledge acts that one hasn't meant to commit.

The repercussion of allowing personal beliefs or social customs to trump behavior is to devalue individual actions. "Any nonpornographic society," Ferguson explains, "is illusory and unjust" because a nonpornographic society "emphasizes custom as a storage system that eviscerates the very bodies that seem to be its basis" (88). Likewise Sade's *Eugenie*, in which all sex is incestuous, is "yet another manifestation of Sade's commitment to tracking metaphysics to its physical bases" (85). An incest taboo substitutes a metaphysical and unavailable self—the selves of past and future generations—for physically present and immediate persons.⁷ Ferguson demonstrates that pornography was conceived as a mode of critical response to new laws and traditions tending to diminish the material importance of individuals and their acts. Thus while *Justine* serves to critique the deindividualizing effects of tort law *Eugenie* assaults the inauguration of national debts, deeming them the sign of the "inevitable inequality of the modern state, whose contract is most binding precisely because it applies only to those who could not, by definition, have had any part in its formulation" (94). In general, Sade's *Philosophie dans le boudoir* "insists that intergenerational inheritance... inaugurates political culture as the essentially metaphysical, and as the diametrical opposite to a pornography that knows how to keep its place" (95). Ferguson uses Sade to explain how pornography represents a critique not of particular values, but the notion of value altogether, outlining instead pornography as way of looking without values—as, indeed, a form dedicated to the conscientious expulsion of metaphysical values in favor of extreme visibility.

⁷ See "The Traffic of Women: Notes on the Political Economy of Sex," in *Toward an Anthropology of Women*, ed. Rayna R. Reiter (NY: Monthly Review Press, 1976) for Gayle Rubin's classic reading of incest taboos as facilitating trade between men.

Indispensable to Ferguson's argument about pornography as a literary form is utilitarianism, a philosophy which she contends may have been the only one concerned with individual pleasure and pain in the eighteenth century. A book about pornography may seem to wander far from the study of Romantic individualism Ferguson provided in *Solitude and the Sublime*, but in fact she treats pornography as part of the same project of distinguishing Kantian idealism from Burkean empiricism, "a concrete instantiation of the abstract transcendental account of society that Rousseau and Kant had advanced" (19).⁸ By refusing to treat pornography as a timeless and universal category, Ferguson is able to direct her attention to the coincidence of pornography's emergence during the evolution of civil society in the Enlightenment. Ferguson's contention is that only by treating pornography as an historically specific technology akin to the prisons, workhouses, and schools designed by the eighteenth century political economists who hoped to facilitate the invention of democratic societies is it possible to see what is ultimately indispensable to liberalism about pornographic representations. Ferguson's examination of political economy is driven by what she labels her "earnest effort to describe the profound importance of utilitarian thinking, as epitomized in the work of Jeremy Bentham, for moving away from the interpretative model and offering ways of capturing the importance of actions that are not always resolvable into statements of belief" (xiv).

Ferguson's own critical perversity, a method whose disdain for metaphysical categories involves deliberate deviation from conventional genealogies, allows her to treat as a seminal pornographer the author of such tributes to bureaucratic erudition as *Chrestomathia* and *Panopticon; or The Inspection House* (the remainder of whose eighty-two word title is provided in the footnote).⁹ Though Foucault has famously decried Benthamite political economics as the instrument of social order and oppression, Ferguson recovers a different Bentham whom she argues was dedicated to inventing forms that construct and exert the pressure of "extreme perceptibility" (ix).¹⁰ In her version of the story, pornography is a form

⁸ Frances Ferguson. *Solitude and the Sublime: Romanticism and the Aesthetics of Individuation*. (NY: Routledge, 1993).

⁹ *Panopticon; or The Inspection-House: containing the Idea of a New Principle of Construction applicable to any sort of establishment, in which persons of any description are to be kept under instruction; and in particular to penitentiary-houses, prisons, houses of industry, work-houses, poor-houses, manufactories, mad-houses, lazarettos, hospitals, and schools: with A Plan of Management adapted to the Principle: in a series of letters written in the year 1787, from Crecheff in White Russia, to a friend in England*, reprinted in *Panopticon Writings*, ed. Miran Bozovic (New York: Verso, 1995).

¹⁰ See Michel Foucault's *Discipline and Punish: The Birth of the Prison* (Vintage, 1995). The symbol of Benthamite visibility has traditionally been the panopticon, an architectural structure designed to maximize institutional efficiency and order by allowing a single observer the surveillance of an unlimited number of inhabitants, whose uncertainty as to who was watching them and when would eventually integrate the feeling of being watched into the inhabitants' psyches so profoundly as to obviate the necessity of actually watching them. Prisoners who never knew when they were being observed would always suspect that they were. Foucault argues that though no

of pleasure-orientation consistent with what she sees as utilitarianism's goal of maximizing individual pleasure, where pleasure is seen as having

everything to do with 'justice, equality, and liberty'...If the Benthamite project is to replace metaphysical accounts of morals with utilitarian structures, the motive is not to eliminate morality *tout court* but to give morality a new language—not that of remote moral maxims but that of representations of perceptible choice. Bentham can treat 'success,' 'happiness,' and 'pleasure' as synonyms because he thinks that utilitarian social systems don't so much force people into a renunciation of pleasure as make it possible for them to see their pleasures more clearly than they otherwise might do. (22-23)

Bentham saw the workhouses, schools, and prisons that give Foucault the *frisson* of repressive voyeurism as liberating because he

projected a utilitarianism that insisted that society owed individuals the opportunity not merely to extend their past histories but to develop, sometimes in relatively unexpected ways, in the future. For that process, relatively robust social institutions were necessary—not just schools, but also prisons and workhouses that were rehabilitative because they offered their denizens new arenas for action and new evaluations of the actions they clearly could perform (because they had performed them). Neither penitence nor penance was especially interesting for Benthamite utilitarianism. 24

Pornography was interesting to it, though—because it was another means by which to construct an opportunity for perception and evaluation. What seems obscene about pornography is its reversal of expected hierarchies and total disregard for traditional allegiances and forbidden unions. Benthamite liberalism, Ferguson argues, has no room for the category of obscenity, defined as acts or representations offensive to accepted standards of decency, because standards of decency are inimical to any effort that values individual actions. These Ferguson believes ought to be evaluated instead on the basis of whether they have verifiably produced satisfaction without harming anyone.

Exonerating pornography from obscenity charges involves precisely the same logic that exonerated *Madame Bovary* in 1857 of the accusation by the state that the novel corrupted public morals. Pornography has to be seen, like *Madame Bovary* by the end of the trial, as a complete act whose totality renders the opinions and emotions of its audience irrelevant. Once the artwork's autonomy was firmly established by the trial, it became possible to regard it in a manner that Flaubert designated as "scientific": that is, with the impersonality that

such structures were ever built, Bentham's panopticon is the symbol of self-policing within modern social organizations.

removes “all the opinions, all the moralizing assumptions” by insisting “that its observations were simply the A + B of demonstration” (102). For Flaubert, as for the judges whose ruling established the autonomy of *Madame Bovary* from codes of moral decency, literature reached its culmination in the moment it became a pornographic form, as uninterested in a reader’s “personality or...moral sense or...opinion” as were equations for “adding two and two” (Flaubert, quoted in Ferguson, 103). The adoption of the “scientific” mode of literary production, far from narrowing the imaginative capacity of an artwork, proliferates imagination, doing so less by committing “to impossible dreams than to the insistence upon seeing action everywhere, seeing it not as merely possible but as necessary...Instead of encouraging people to anticipate, through the lens of a casebook, the different moral dilemmas that might present themselves,” pornographic art would “[minimize] the role of forethought in action (on the ground that one would never be prepared simply by forethought for the life one led)” (106, 109). Sex becomes the ultimate sign not of passionate but of rational utilitarian action, in the first place because its ultimate appeal is to *bonheur*, and in the second place because *bonheur* is defined as “synchronized success” (117), successful sex being sex that complies to the utilitarian standard of happiness wherein whatever happiness is produced must apply to the greatest number. Sex acts are the easiest acts for a “happiness-measuring system” to work with because they constantly produce altered states instead of aspiring to the continuation of a single state. Flaubert suggests, in fact, that prostitution produces the most utilitarian form of sex because of the premium it places upon the detached evaluation of happiness according to discrete acts.

Utilitarianism’s rendition of pornographic sex through the mathematical cartography of desire explains how, in Ferguson’s final surprise, and despite their historically contentious relationship, pornography and religion together might reconstruct a way to think about the human soul in modernity. Instead of treating the legendary opposition between pornography and religion as part of the effort of the latter to preserve the soul against the destructive effects of mechanisms like the former, Ferguson regards explicit sexual representations as one way of achieving what religion has been losing since the advent of modernity: a convincing portrait of the dynamic human soul. The problem is the excessive dependence of religion upon conventions of value and belief. Turning to *Lady Chatterley’s Lover*, Ferguson tracks the absurdity of belief through the example of Clifford Chatterley’s conviction that he could—despite his impotency and sterility—father a child, because his faith in the rights accorded him by “money and status and even love” (32) make sex irrelevant. His wife and any child she might bear are not only figuratively and legally but in Clifford’s mind literally his, and he appropriates the acts of those he owns—a group which includes Mellors, who is Clifford’s gamekeeper and his wife’s lover—as his own.

Against Clifford's sense that his belief in marriage and aristocracy trumps anything he can or cannot do, Lawrence positions the sex that Connie and her lover actually have. In doing so, he opposes belief with the transformative capacity of visible acts. As the writer whom Foucault famously considered the "priest of sexuality," Lawrence practices a kind of "sexual evangelism" in which sex, because of its capacity to reclassify individuals "on the basis of their responsiveness to new sexual objects," transmits beyond the Enlightenment the Pentecost's capacity to produce "change[d] bodies and lives" (32, 142).¹¹ The diction of Mellors's "revisionary Christian language" at the end of the book and the "hard-bitten Tevershall Methodism" (142) at the beginning marks the transmission of sexual experience as "not simply sexual experience but soul making" (32). Pornographic systems are what enable individuals to possess, in Lawrence's language, a "character open to conversion." What does it mean when religion endeavors to banish pornography, an arbiter of the soul, but that religion has succumbed to what it most resents about postmodernism? Lawrence's "'physical idealism,'" which emphasizes the importance of "reconfiguring the shapes both of persons and relationships" (129), demands the persistence of a malleable soul in a time and amongst institutions designed to eliminate the need for one.

The obliteration of the soul has to do, Ferguson believes, with the degree to which our society has departed from the Benthamite view of individuals as "educable and malleable" (154), a departure characterized by a gravely mistaken tendency "to see values as capable of being maintained without the conditions in which they could be facts" (156). Insofar as Ferguson's depiction of pornography is "for" or "against" anything, it favors the proliferation of circumstances in which an individual can be reevaluated from the vantages of endlessly variable groups. Such individuals and their acts do not possess a character or stable interiority in excess of their perceptible value, a value that is high in some circumstances and low in others, and whose continuity "depends more on reformulations of the rules than on the simple following of them" (156). What Ferguson is against is the only kind of pornography that "really deserves to be called pornography (and very little sexual explicitness does)" (156). Such representations exist in circumstances that are "not just a message but an environment," like that portrayed in Bret Easton Ellis's novel *American Psycho*—a novel that Ferguson sees as depicting the event in which a post-Benthamite society is formed, and which is peopled by characters who are what they are worth, and whose entire worth has been determined by their local value in a single circumstance. Considering pornography as a way of thinking and sex as a

¹¹ Michel Foucault's tone regarding Lawrence, Ferguson points out, is one of amusement in *The History of Sexuality, Volume I: An Introduction*, trans. Robert Hurley (New York: Vintage, 1990), 156-59.

rational process enables us to evaluate instances of both without resorting to the kind of dehumanizing tendencies that those who decry pornography hope our society will avoid.

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